

		Here, Plaintiff was aware of the April 6 hearing and, as with other hearings in this matter on March 23, 2026, February 4, 2026, and November 17, 2025, he failed to appear. His own declaration establishes that he found the correct department without issue on the date of the hearing and the only reason the case was dismissed was his failure to enter the department and appear when the case was called. This inadvertence is not excusable or reasonable. Thus, the Court finds that relief under section 473(b) is unwarranted. In light of the above, the motion is DENIED. Court orders Clerk to give notice.
111	Pass v. Oakmont Management Group, 2026-01564998	MOTION FOR PREFERENCE – GRANTED Code of Civil Procedure section 36(a) permits a party who is over 70 years of age to petition the court for trial preference, which the court <i>must</i> grant if it makes both of the following findings: (1) The party has a substantial interest in the action as a whole; and (2) The health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation. Section 36 “was enacted for the purpose of assuring that an aged or terminally ill plaintiff would be able to participate in the trial of his or her case and be able to realize redress upon the claim asserted.” (<i>Looney v. Superior Court</i> (1993) 16 Cal.App.4th 521, 532.) Plaintiff Ella Pass moves for Trial Preference under section 36(a). Plaintiff has a substantial interest in this action as she is the sole plaintiff. Plaintiff is currently 94 years old. (Decl. of Ella Pass, ¶ 2.) Plaintiff submits the declaration of her counsel, who details that Plaintiff suffered serious orthopedic injuries, endured two hip surgeries and a 23-day hospitalization marked by serious complications, and now depends on around-the-clock care with a statistical life expectancy of roughly 3.63 years. (Barnett Decl., ¶¶ 6–9.) The declaration complies with CCP §36.5 and the Court finds that the

		health of Plaintiff is such that preference is necessary to prevent prejudicing her interest in the litigation. While Defendants oppose the motion, their opposition is based on the portion of the statute involving discretionary preference. (<i>Fox v. Superior Court</i> (2018) 21 Cal.App.5th 529, 533–534 [clear-and-convincing-evidence standard applicable to discretionary preference under section 36(d) does not apply to a motion under section 36(a)]; <i>id.</i> at p. 534 [section 36(a) does not require proof of death, incapacity, or likely unavailability for trial].) If the court finds that a party meets the requirements of section 36(a), the court cannot balance conflicting interests of opposing litigants. (<i>Fox v. Superior Court, supra</i>, 21 Cal.App.5th at p. 535 [holding “preference must be granted” and “[n]o weighing of interests is involved” where the moving party meets the standard].) If the motion is granted, trial must be set within 120 days after the motion is granted. (Code Civ. Proc., § 36(f).) Defendants’ objections to the Barnett declaration are OVERRULED. The Court finds the declaration complies with CCP § 36.5. The parties are to appear at the hearing and be prepared to select a trial date within 120 days. Plaintiff’s counsel shall be prepared to provide a date for Plaintiff’s deposition and/or independent medical examination to occur within the next 30 days.
112	Security National Ins. Co. v. OC Services	MOTION FOR ENTRY OF JUDGMENT – NO TENTATIVE RULING Parties previously advised the court they were working on a settlement agreement.

113	Yu v. Universal Waste Systems, Inc., 2026-10548728	DEMURRERS TO AMENDED COMPLAINT – SUSTAINED WITH LEAVE TO AMEND MOTION TO STRIKE – GRANTED On February 27, 2026, Plaintiff Shihu Yu, proceeding <i>in pro per</i>, filed the operative First Amended Complaint against Defendants WM Collection & Recycling, Inc., BHE Management Corporation, Dedicated Transportation Services, Inc. and DOES 1-20, which contains the following causes of action: (1) negligence pursuant to Civil Code section 1714(a), (2) violation of Unruh Civil Rights Act, Civil Code section 51, (3) wrongful towing from disabled space pursuant to Vehicle Code sections 22658 and 22511.8, and (4) conversion pursuant to Civil Code sections 3336 and 3337. (ROA 10.) Defendant Dedicated Transportation Services, Inc. demurs to the entire complaint for failure to state facts sufficient to constitute a cause of action and uncertainty. (ROA 24.) Defendant BHE Management Corporation also demurs all causes of action alleged in the complaint and further moves to strike Plaintiff’s claim for punitive damages. (ROAs 32.) Plaintiff failed to oppose the motion. Based on the non-opposition, the Court may “deem plaintiff[] to have abandoned the issues” or “claims” addressed in the Demurrers and Motion to Strike. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) The non-opposition is considered an implied concession to the merit of Defendants’ arguments presented in the Demurrers and Motions to Strike. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20; <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566, <i>as modified</i> (Jan. 25, 2000) [“By failing to argue the contrary, plaintiffs concede this issue.”]; <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal.App.4th 1409, 1424 [holding that “by failed to address” an issue, the issue is “impliedly concede[d].”]; and <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529 [“Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot.”].)
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